

NCRWC & WORKING OF THE CONSTITUTION

One continuous constitutional-maintenance rail | Topic 52
Recommendation ≠ current law | Route must match defect | Basic structure permits reform

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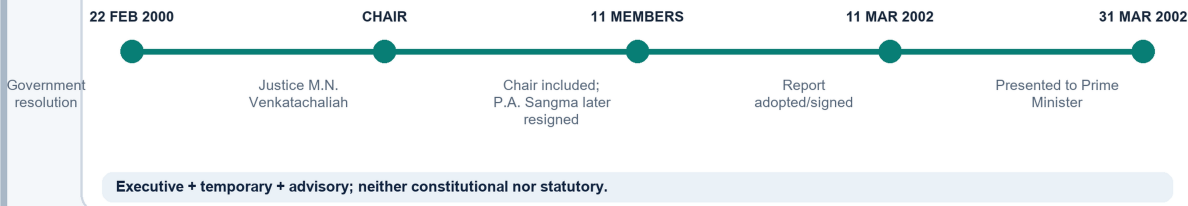
Review, amendment or replacement?

REVIEW	ART. 368
Diagnose working; recommend; report alone changes no law.	Parliament amends; procedure and basic structure control.
STATE RATIFICATION	REPLACEMENT
Specified federal changes need at least half the States.	Fresh constituent claim; outside NCRWC mandate.

NCRWC = constitutional maintenance, not a new Constitution.

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Identity and chronology



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Mandate, method and authority

50 YEARS	→ Review constitutional working
OBJECT	→ Effective government + socio-economic development
BOUNDARY	→ Parliamentary democracy + basic structure
METHOD	→ Papers + experts + public responses
FORCE	→ Persuasive recommendations, not binding law

Consultation strengthens evidence; it does not confer constituent power.

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Institutional-identity firewall

Constituent Assembly	Parliament / Art. 368
Founding authority	Formal amendment
Sarkaria / Punchhi	ARC
Centre-State review	Administrative reform
Law Commission	NCRWC
Defined law reform	Whole-system working review

Overlap of subject does not merge mandates or recommendations.

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How a Constitution works

TEXT	→ Articles, Parts, Schedules
INSTITUTIONS	→ Legislature, executive, courts, federal units
PRACTICE	→ Rules, conventions, parties, political culture
CAPACITY	→ People, finance, data, procedure
OUTCOMES	→ Rights, accountability, trust, remedies

Test authorisation, restraint, delivery and correction.

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Electoral and legislative reform

ELECTORAL	LEGISLATIVE
Criminalisation; finance audit; party law; ECI appointment; anti-defection.	LS 120; RS 100; States 90/50; committees; privileges; public consultation.
STABILITY	ANTI-DEFECTION
Constructive no-confidence: 20% notice + alternative leader.	Resign/recontest; ECI decision; office bar; invalid destabilising vote.

Every item remains an NCRWC recommendation unless separately enacted.

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Executive, services and integrity

10% MINISTRY	→ Proposed ceiling; later 91st Amendment uses 15%.
CIVIL SERVICES	→ Statutory boards for transfers, placements and promotions.
SENIOR ENTRY	→ Wider recruitment, including open market.
TRANSPARENCY	→ Information access; move from secrecy to openness.
INTEGRITY	→ Whistle-blowing, confiscation, Lokpal/Lokayuktas, CVC, audit.

Appointment, information, audit and sanction form one accountability chain.

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Judiciary, tribunals and rights

JUDICIAL COMMISSION	ACCOUNTABILITY
CJI + two senior-most SC judges + Law Minister + eminent person.	Complaints mechanism; court planning; access and speedy justice.
AGES	TRIBUNALS
High Court 65; Supreme Court 68 — recommendations.	Expertise + independence + High Court review.
RIGHTS	
Torture, compensation, privacy, speedy justice, environment, Article 300A	

NCRWC commission ≠ later NJAC ≠ current collegium.

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Federalism and decentralisation

Art. 263	Art. 307
Inter-State Council consultation	Trade and Commerce Commission
Governor	Art. 356
Chief Minister consultation	Last resort + floor test + no premature dissolution
State Bills	Local bodies
Suggested Governor ~6 months; President ~3 months	Functions + fiscal domain + functionaries + audit/elections

Suggested Bill periods are not the current text of Articles 200-201.

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Implementation audit

PROPOSAL	→ State exact wording
INSTRUMENT	→ Find amendment, law, rule, judgment or order
COMPARE	→ Route + wording + institution + effect
ATTRIBUTE	→ Seek official evidence of adoption
LABEL	→ Exact modified related judicial displaced pending

Chronology plus similarity is not proof of NCRWC causation.

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Working diagnosis and route choice

RULES / CONVENTIONS	→ Scrutiny, ordinance restraint, reasons
ADMINISTRATION	→ Vacancies, staffing, technology, civil service
ORDINARY LAW	→ Party finance, tribunals, transparency, integrity
ARTICLE 368	→ Only when constitutional allocation/text must change
COURTS	→ Interpret text; protect basic structure and judicial review

Use the least legally sufficient, institutionally workable route.

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Criticism, traps and qualified verdict

LIMITS	→ Self-limited mandate; consultation not constituent consent; uneven feasibility.
LEGITIMACY	→ Elected institutions and States decide contested redesign.
TRAPS	→ Not presidential replacement; not binding; not wholly unimplemented.
CASES	→ Use later judgments as governing evidence, not NCRWC implementation.
VERDICT	→ A selective diagnostic reform menu, assessed proposal by proposal.

Current-status control: 9 September 2026.